

10. 9:00 AM CASE NUMBER: C25-03696
CASE NAME: LORI LOVELAND VS. HOME DEPOT U.S.A, INC.
*HEARING ON MOTION IN RE: TO STAY
FILED BY: HOME DEPOT U.S.A, INC.
TENTATIVE RULING:

A Stipulation and Order was filed with the Court. The Court continues the Case Management Conference to: December 09 2026 at 8:30 a.m.

The Court continues the Motion to Stay to: October 09 2026 at 9:00 a.m.

11. 9:00 AM CASE NUMBER: MSC19-01240
CASE NAME: SONNENSHEIN VS PACIFIC UNION
HEARING ON SUMMARY MOTION
FILED BY: SONNENSHEIN, STACEY
TENTATIVE RULING:

Continued to 9:00 a.m. on October 23, 2026, pursuant to the parties' stipulation and order filed July 15, 2026.

12. 9:00 AM CASE NUMBER: MSC21-02399
CASE NAME: SYED VS. LEITAO
HEARING ON SUMMARY MOTION
FILED BY: SYED, A.
TENTATIVE RULING:

Plaintiffs A. Syed and I. Syed's motion for summary adjudication as to Causes of Action One and Three is **denied**.

Plaintiffs seek summary adjudication on the first cause of action for breach of fiduciary duty and the third cause of action for fraud (concealment).

A plaintiff may move for summary judgment if plaintiff contends there is "no defense to the action", that the papers show "there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law". (§ 437c(a)(1) and (c).) A plaintiff meets his burden on summary judgment if plaintiff " 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.' " (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) A motion for summary adjudication under § 437c(f)(1) can be granted only "if it completely

disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (See also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

Breach of Fiduciary Duty

“ ‘ “The elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.” ’ [Citation.]” (*Tribeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1114 (emphasis added).)

Relevant Allegations

Plaintiffs allege that they entered into a contract with Defendant as real estate agents and/or real estate brokers, which gave rise to a contractual relationship with Plaintiffs, and consequently, a fiduciary duty, and/or quasi-fiduciary duty owed by said defendants to Plaintiffs, and an accompanying duty of loyalty and duty to disclose all material facts. (FAC ¶4.) Later, Plaintiffs allege that Defendant violated his fiduciary duties and/or concealed facts regarding the parties’ contract and related documents, including the deed of trust and grant deed. (FAC ¶¶14-15.) Plaintiffs also allege that Defendant had superior knowledge of real estate transactions and that Plaintiffs relied on Defendant’s statements regarding the property and the plan to sell it. (FAC ¶16.)

In the breach of fiduciary duty claim, Plaintiffs allege that Defendant owed them a duty of loyalty and that Defendant’s insistence on taking an ownership interest in the property while simultaneously acting as a real estate agent/broker was a product of fraud, a conflict of interest, a breach of fiduciary duty and void or voidable. (FAC ¶23.) Plaintiffs also allege that Defendant represented that the agreement between them was legal, Defendant could handle things and that Defendant could sell the property out from under the Plaintiffs. (FAC ¶24.)

Plaintiff alleges that Defendant breached his fiduciary duties by recording a deed of trust on the property, based upon the parties’ void or voidable agreement, and threatening to record a grant deed on the property. (FAC ¶26.)

Duty and Breach

““The law imposes on a real estate agent ‘the same obligation of undivided service and loyalty that it imposes on a trustee in favor of his beneficiary.’ [Citations.] This relationship not only imposes upon him the duty of acting in the highest good faith toward his principal but precludes the agent from obtaining any advantage over the principal in any transaction had by virtue of his agency. [Citations.] A real estate licensee is ‘charged with the duty of fullest disclosure of all material facts concerning the transaction that might affect the principal's decision. [Citations.]’ [Citations.]”” (George Ball Pacific, Inc. v. Coldwell Banker & Co. (1981) 117 Cal.App.3d 248, 256; see also, Horiike v. Coldwell Banker Residential Brokerage Co. (2016) 1 Cal.5th 1024, 1040 [real estate brokers’ duty of disclosure]; Civil Code section 2079.)

“ ‘ “Before a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law.” [Citation.]’ [Citation.]” (Cleveland v. Johnson (2012) 209 Cal.App.4th 1315, 1338.)

Plaintiff argues that Defendant as a real estate broker owed fiduciary duties and an undivided duty of loyalty to their clients, including Plaintiffs. Plaintiffs argue that Defendant simultaneously acted as a real estate agent and an investor and insisted on receiving a deed of trust, in exchange for doing his job as a real estate agent. Thus, Defendant created a conflict of interest as he sought to profit at Plaintiffs’ expense.

Plaintiffs’ evidence is that Defendant listed the property for sale at the same time he asked Plaintiffs to sign the Equity Share Agreement and provide Defendant with a deed to the property. (I Syed dec. ¶¶10-12; A Syed dec. ¶¶10-12.) Defendant’s evidence shows, however, that the parties agreed to the Equity Share Agreement in January 2019. (Leitao dec. ¶¶7-13; Syed dec. ex 1.) Defendant also claims that the parties agreed to the deed of trust and the grant deed before the property was listed for sale. The deed of trust listing Defendant as the beneficiary is notarized on January 31, 2019 and a grant deed giving Defendant an interest in the property is notarized on February 1, 2019. (Syed dec ex. 2.) In March 2019, Defendant listed the property for sale as the listing broker. (Leitao dec. ¶¶18.)

Thus, Defendant’s facts show that he was not the Plaintiffs’ fiduciary when the

parties entered into the Equity Share Agreement and when Plaintiffs signed the deed of trust and grant deed. The Court finds that there is a triable issue of material fact as to when Defendant became the parties' real estate broker and thus, when the fiduciary duties started. Therefore, there is a triable issue as to whether Defendant was Plaintiffs' fiduciary when the parties entered into their agreement.

The Court finds, however, that Plaintiffs have met their burden of showing that Defendant had fiduciary duties to Plaintiff when he acted as a real estate broker in listing and selling the property. Defendant has not presented a triable issue of material fact as to these duties.

In reply, Plaintiffs argue Defendant advised Plaintiffs to reject a \$1.1 million offer to buy the house. This theory is not included in the complaint, not raised in the moving papers and is not based upon evidence submitted with the moving papers. For these reasons, the Court cannot consider this argument. Further, were the Court to consider this argument, Defendant states that he received an offer for \$1.2 million and it was Plaintiffs who decided to wait and see if they could get more offers. (Leitao dec 19.)

To the extent Plaintiffs are also claiming nondisclosure based upon Defendant not disclosing that the floor plan was an impediment to selling the house, Plaintiffs have not met their initial burden. Plaintiffs declare that Defendant never told them that the house's unusual floor plan would prevent its sale. (A. Syed dec. 15-16; I. Syed dec. 15-16.) Defendant testified at his deposition that from March to October 2019, he believed the house was sellable. (Plaintiffs' evid. Tab 6: Leitao depo: 41:20-22; 72:25-73:4.) In Defendant's opposition to the first motion for summary adjudication, he declared that as time went on potential buyer feedback was that the unusual floor plan and the Fung Shui were impediments to selling. (Plaintiffs' evid. Tab 9: Leitao dec. 19.)

Plaintiffs' evidence does not show that the property was not sellable. Nor does Plaintiffs evidence show that Defendant thought the floor plan would be an impediment to sell the house when it was listed. It was only after they received potential buyer feedback that it appeared the floor plan of the house might cause an

impediment to sale.

Damages

When damages are an element of the cause of action, the moving plaintiff must establish “both the fact and the amount of damages.” (*Pajaro Valley Water Management Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1106.) “[A] plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.” (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.)

Here Plaintiffs claim the following damages: Plaintiffs paid about \$85,000 in rent when they vacated the property for repairs; Plaintiffs claim they paid over \$11,000 in mortgage payments not covered by a temporary renter; when Defendant recorded a grant deed on the property it triggered a property tax reassessment, which has cost \$23,000 or more in additional taxes; and Plaintiffs claim approximately \$1.5 million in lost earnings because Imran had to switch from an independent contractor position, making \$480,000 per year, to a w-2 job, making \$180,000 per year, in order to obtain a loan to pay back Defendant.

As to Plaintiffs’ claim that Imran had to switch jobs and become a w-2 employee, which means he lost out on \$300,000 per year in additional income. Plaintiffs provide no evidence showing that Imran consistently made \$480,000 year after year, or would continue to make that much in the future. Further, it is not clear to the Court that an individual making \$480,000 per year could not get a loan without switching jobs, which raises questions regarding causation. Finally, there is a triable issue as to whether Imran voluntarily chose to switch jobs or if his position was converted to a full time employee as is suggested by the text message sent on December 17, 2019. (Defendant’s evidence page 27.)

Further, Plaintiffs claim damages in approximate amounts, as opposed to specifics. If the Court were to grant summary adjudication here, it would need to enter a specific number for the damages. In reply, Plaintiffs acknowledge that there is a triable issue as to the amount and causation of damages. (reply p.14.) Although the Court has conducted its own analysis on damages, it concurs with Plaintiffs’ statement

that there are triable issues as to the amount of damages, as well as causation.

The Court finds that Plaintiffs have not met their burden and/or there are triable issues as to both duty, breach and damages. Therefore, summary adjudication as to the breach of fiduciary duty claim is denied.

Fraud / Concealment

“ ‘ “[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” ’ [Citation.]” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 (emphasis added).)

“[N]ondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.)

Here, Plaintiffs argue that Defendant was a real estate broker and thus a fiduciary, and he failed to disclose that the kind of deal he was proposing and doing was morally, ethically and statutorily barred. As discussed above, this argument is based on the theory that Defendant was Plaintiffs fiduciary before the parties entered into the contract. There is a triable issue as to when the fiduciary relationship began and therefore, there is also a triable issue on this claim.

Summary adjudication as to Cause of Action Three is also denied.

Evidence

The Court grants Plaintiffs' requests for judicial notice 1, 3, 4, 5, 6 and 7.

The Court denies Plaintiffs' request for judicial notice 2. While a complaint in San Mateo County Superior Court is subject to judicial notice, it includes only allegations and is thus, irrelevant to show whether Defendant did the things alleged in this case.

13. 9:00 AM CASE NUMBER: N25-2188
CASE NAME: PETITION OF: CITY OF MARTINEZ
HEARING ON PETITION IN RE: FOR ORDER TO ABATE SUBSTANDARD BUILDING AND APPOINTMENT OF RECEIVER
FILED BY: CITY OF MARTINEZ
TENTATIVE RULING:

The unopposed Petition of the City of Martinez is granted.

The court will sign the Revised Proposed Order Appointing Receiver lodged with the court on July 10, 2026.

14. 9:00 AM CASE NUMBER: N25-2190
CASE NAME: PETITION OF: CITY OF MARTINEZ
HEARING IN RE: PETITION FOR ORDER TO ABATE SUBSTANDARD BUILDING
FILED BY: CITY OF MARTINEZ
TENTATIVE RULING:

The unopposed Petition of the City for Order to Abate Substandard Building is granted.

The court will sign the Revised Proposed Order Appointing Receiver lodged with the court on July 10, 2026.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO REQUEST FOR ADMISSION, SET ONE**
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Hearing is **continued** on court's motion to Dept. 20, Judge O'Connell, **on 8/13/26 at 9:00 a.m.** Tentative ruling will be available the prior court day beginning at 1:30 p.m.